

[Return to Search](#)

## Bunyoro, an African kingdom

**Author(S):** Beattie, John

**Document Type:** Book

**Original Page:** 68

**Culture (OWC):** [Banyoro \(FK11\)](#)

**Region:** Africa

**Sub Region:** Eastern Africa

**Field Date:** 1951-1955

**Coverage Date:** 1952-1955

**Place Coverage:** Western Province, Uganda

**Section Title(S):** Disputes And Their Settlement

After the parties to the dispute have stated their cases and the witnesses, if there are any, have been heard, the assembled neighbors discuss the issues raised and usually reach a unanimous decision. They then direct the person who has been found to be at fault to bring beer and meat to the injured party's house on a specified day and time. If the person charged accepts the tribunal's decision, he does this in due course, and there follows a feast, in which both the parties, and the neighbors who adjudicated on the case, take part. After this the dispute is supposed to be finished, and it should not be referred to again. The following is an example of a case settled in this manner:

At a beer party a middle-aged man, Yonasani, was drunk and insulted a youth called Tomasi. Tomasi wanted to fight with Yonasani, but was prevented from doing so by his companions. However, he left the party early, and lay in wait for Yonasani on the path to the latter's house. As Yonasani passed he hit him on the head with a stick, knocking him down, and fled. But Yonasani suspected who had attacked him, and the next day he complained to Tomasi's father. When Tomasi was accused, he denied all knowledge of the affair, but on Yonasani's threatening to take the case to the chief's court Tomasi's father said that he and his son would agree to have the case settled in a neighborhood court. About half-a-dozen neighbors were accordingly summoned to adjudicate on the matter, and they met at Tomasi's house. After everybody had spoken, the neighbors discussed the case briefly, and they all agreed that Tomasi had hit Yonasani, and that he had been wrong to do so, for if he had a complaint against Yonasani he should have taken it before a neighborhood court. The court accordingly ordered Tomasi to bring four large jars of beer and five shillings worth of meat to Yonasani's house about a week later. He agreed to do this, and on the appointed day all the people who had attended the hearing were present, as well as Tomasi

627  
[Informal In-Group Justice](#)

683  
[Offenses Against The Person](#)

and Yonasani and the members of their households. Tomasi was told to serve the beer, and to choose a friend to roast the meat. Then, in the words of an informant who was at the party, "We began to eat and drink, and everyone started to joke and laugh, as they do at a wedding feast. Soon some people began dancing, and we accompanied them by singing and clapping our hands. By now Tomasi and Yonasani had become quite friendly with each other as they used to be before they quarrelled. And from that day to this the quarrel between them has been finished."

The case of Yonasani and Tomasi exhibits the characteristic features of this kind of settlement. The initial action is taken by the complainant, not by the court, which of course does not exist until it is summoned. A penalty is always imposed, and this penalty is always the same, a payment of beer and meat which are to be consumed in a joint feast by all the parties to the case. Although Yonasani's case might have been taken directly to the chief's court for settlement, it was not, since the complainant had expressed himself willing [69](#) to have it heard in the village. This last point is important; Nyoro villagers consider it unneighborly to take a minor case to the chief's court, or, as they would put it, "to the Government" (opposing in this as in other contexts the superimposed state to the local community), and it shows kindness and forbearance on the part of a complainant not to do so. To permit the case to be heard among neighbors and friends implies that the offender is still accepted as a member of the community; to send the case for hearing by "strangers" in the chief's court, where heavier penalties such as imprisonment may be imposed, would suggest that his own community rejected him.

273  
[Alcoholic Beverages](#)

574  
[Visiting And Hospitality](#)

621  
[Community Structure](#)

627  
[Informal In-Group Justice](#)

692  
[Judicial Authority](#)

Human Relations Area Files

*755 Prospect Street*

*New Haven, CT 06511*

General Inquiries: [✉ hraf@yale.edu](mailto:hraf@yale.edu)

Issues and Bugs: [✉ hraf-support@yale.edu](mailto:hraf-support@yale.edu)



[Terms and Conditions](#) · [Accessibility](#) · [Cookie Policy](#)